

Digital Rights Management

A necessary evil or an evil that's not necessary?

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Digital Rights Management (DRM) refers to any scheme used to protect the copyright of digital content using a system of encryption that often includes remote monitoring and control by the copyright owners. The development of the various forms of DRM has largely been driven by the large media companies as a response, they say, to the effect of large scale copying on their revenues. Rather than rely on the passive protection of copyright law these companies have gone on the offensive with active digital rights management.

DRM encompasses a range of embedded software and hardware measures for all digital media that attempt to physically stop unauthorised use and copying. Since DRM at least appears to be a method of enforcing copyright, any discussion of DRM must include a discussion of copyright itself.

The advantages and disadvantages of DRM for the copyright owner and the consumer and the legal, ethical and ideological issues surrounding DRM are by no means clear. In this feature we explore the ins and outs of DRM as they stand today.

The history of information protection and copyright

It may seem that only in the digital age has the protection of data become a problem, but means have always been sought to protect valuable information. The ancient Greeks formed groups that protected their knowledge of physics and geometry by keeping it secret. Secrecy was enforced by ritual and the threat of punishment.

In Europe, in the middle ages, the knowledge associated with various crafts such as gold working was treated as being of great value and was kept secret by organisations known as guilds. These trade guilds flourished between the 11th and 16th centuries, although some of them have survived in attenuated form until today. Similar guilds, known as Shreni and Benin, operated in India as long ago as 300 C.E.

This simple principle of secrecy is still a part of the protection of information today and it ranges from the secret keys used in encryption to proprietary methods and information.

At least until the invention of the moveable type printing press by Gutenberg in 1439, books, paintings and musical performances could be copied, but almost as much knowledge, skill and effort was required as was needed to create the originals. This difficulty in itself provided a fair degree of protection. This illustrates that very often just making something difficult enough to copy provides enough protection, at least for economic purposes.

The first UK laws on copyright on books and other writings were laid down in 1710 with the Statute of Anne, apparently prompted even then by the piracy of printed books. Copyright law in India was first introduced in 1847 under the East India Company's regime.

Relatively recently actions have been taken to attempt to bring copyright laws up-to-date, so they are better able to deal with the issues raised by digital technology. In 1998

